

["Generally, one suing as an assignee must allege and prove the assignment to recover on the assigned claim"].

Plaintiff's complaint contains allegations that the "auto deficiency account was purchased by Plaintiff" [¶4]; that "Plaintiff is a debt buyer [¶5]; that "Plaintiff is the sole owner of the account at issue [¶15]; and that "Original Creditor, for valuable consideration, assigned, transferred, and sent over [to another entity] Defendant's account number", and that this entity "for valuable consideration, assigned, transferred, and set [sic] over all interest in the contract and the vehicle pertaining to Defendant's account number . . . to Plaintiff . . . and Plaintiff is now the holder of the assigned rights in its chose of action of said claims and has the authority to assert the rights of all owners of the debt at issue" [¶19].

Defendant's response admits that the "debt in question was charged off and later sold to the debt collector", but claimed that Plaintiff's counsel "has not provided a contract that establishes my direct obligation to them" and "The only document they have presented does not demonstrate a valid contractual agreement between me and the debt collector." It further alleged Plaintiff failed to respond to repeated requests for "proof of a legitimate contract and a breakdown of the claimed debt".

The Court finds that the Defendant's response fails to contest a material allegation of the complaint or assert an affirmative defense. The Court also notes that there is no written opposition to the motion. Plaintiff has filed proof of service of the motion. The proof of service is attached to Plaintiff's proposed order.

ORDER

The motion for judgment on the pleadings is granted with leave to amend. The Defendant must file an amended answer within 30 days of the date of service of this order. CCP Section 438(h)(2). Plaintiff shall serve this order upon Defendant and file a proof of service with the Court.

LUCIA ACEVES VILLALOBOS vs. GENERAL MOTORS LLC
Case No. CU23-03523

Defendant's Motion to Tax Costs

TENTATIVE RULING

On the Court's own motion, the hearing for Defendant's motion to tax costs is continued to July 7, 2026 at 9:00 a.m.
